

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE JOINT
7 RESOLUTION NO. 1019

By: Roberts of the House

and

Bergstrom of the Senate

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10 COMMITTEE SUBSTITUTE

11 A Joint Resolution directing the Secretary of State
12 to refer to the people for their approval or
13 rejection a proposed amendment to the Constitution of
14 the State of Oklahoma by adding a new Section 8 to
15 Article III; imposing requirements with respect to
16 elections; requiring general election races to have
17 certain characteristics; authorizing enabling
18 legislation; providing ballot title; providing for
19 noncodification; and directing filing.

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22 BE IT RESOLVED BY THE HOUSE OF REPRESENTATIVES AND THE SENATE OF THE
23 1ST SESSION OF THE 60TH OKLAHOMA LEGISLATURE:

24 SECTION 1. A new section of law not to be codified in the
Oklahoma Statutes or in the Constitution reads as follows:

 This initiative shall be known and may be cited as the "Ensure
each general election race for federal, state, and county officers

1 has representation from every recognized political party that had a
2 candidate file for the race (EQUAL REPRESENTATION) Initiative".

3 SECTION 2. The Secretary of State shall refer to the people for
4 their approval or rejection, as and in the manner provided by law,
5 the following proposed amendment to the Constitution of the State of
6 Oklahoma by adding a new Section 8 to Article III thereof, to read
7 as follows:

8 A. In all elections for federal, state, and county officers,
9 except for judicial branch officers, the following shall be
10 required:

11 1. Each political party recognized by the laws of this state
12 shall have the opportunity to nominate a candidate for the General
13 Election for federal, state, and county officers in the manner
14 provided by law. The candidate must have filed during the timeframe
15 designated by Oklahoma law and become the political party's nominee
16 by winning the party's primary outright or by winning the party's
17 runoff, or by winning as an unopposed candidate in the manner
18 provided by law.

19 2. Nothing in this section shall be construed to limit the
20 authority of the Legislature to enact a mandatory primary system as
21 provided in Section 3 of Article III of this Constitution.

22 B. 1. This section shall remain in effect unless and until it
23 is repealed by a vote of the people by initiative or referendum as
24 provided in this Constitution.

2. An initiative or referendum to repeal this section shall contain no subject other than the repeal of this section.

C. The Legislature shall have the authority to implement this section with appropriate legislation. The implementation shall be completed in the first legislative session following passage of the Constitutional amendment.

SECTION 3. The Ballot Title for the proposed Constitutional amendment as set forth in SECTION 2 of this resolution shall be in the following form:

BALLOT TITLE

Legislative Referendum No. _____ State Question No. _____

THE GIST OF THE PROPOSITION IS AS FOLLOWS:

This measure would amend the Oklahoma Constitution. It would add a new Section 8 to Article 3. If the measure passes, elections for federal, state, and county officers would have to be conducted in a specific manner. Each general election race shall include a candidate from every political party recognized under Oklahoma law and had a candidate run for the race. The candidate must have filed during the timeframe designated by Oklahoma law and become the political party's nominee by winning the party's primary outright or by winning the party's runoff in the manner provided by law. Nothing about this measure would amend, modify, or limit the ability of the Legislature to provide for a system of primary elections. The provisions of

1 this section would remain the law unless pursuant to an
2 amendment to the Constitution by means of an initiative petition
3 or a measure referred to a vote of the people by the
4 Legislature. An initiative petition or a referendum measure
5 could only contain a provision to repeal this section and could
6 not contain an amendment to this section. The Legislature would
7 have the ability to enact laws in order to implement the
8 provisions of this section.

9 SHALL THE PROPOSAL BE APPROVED?

10 FOR THE PROPOSAL — YES _____

11 AGAINST THE PROPOSAL — NO _____

12 SECTION 4. The Chief Clerk of the House of Representatives,
13 immediately after the passage of this act, shall prepare and file
14 one copy thereof, including the Ballot Title set forth in SECTION 3
15 hereof, with the Secretary of State and one copy with the Attorney
16 General.

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18 COMMITTEE REPORT BY: COMMITTEE ON RULES, dated 03/09/2026 - DO PASS,
19 As Amended and Coauthored.
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